

Guido Scorza: "AI Act, now we must move from the written rule to the living rule"

Interview with Guido Scorza, member of the Italian Data Protection Authority

(by Michela Stentella, www.forumpa.it, March 15, 2024)

Now that the AI Act has been approved by the European Parliament, the challenge is to implement these provisions. A significant effort is required from the various Member States to avoid new regulatory exercises and to identify the agencies or authority that will need to work to move "from the written rule to the living rule." This is emphasized by Guido Scorza, a member of the Italian Data Protection Authority, who adds, "let's forget about having crossed the finish line and rather feel like we are at the starting blocks and start running to implement these rules."

The Regulation on Artificial Intelligence, the long-awaited AI Act, has been approved by a large majority in the European Parliament. As we did last December after the political agreement that emerged from the Trilogue, we comment on the text with Guido Scorza, a member of the Italian Data Protection Authority. A text that we can now consider definitive, although it lacks some steps that Scorza himself defines as "more formal than substantial": legal linguists, the Council, and finally publication in the Official Journal.

****What changes compared to the text that came out of the Trilogue in December?***

There are no significant changes compared to the text that emerged from the arduous and lengthy Trilogue in December... 38 hours tell the chronicles. The text remains built around the fundamental principle of a risk-based approach, thus a system of rights and obligations proportional to the expected or foreseeable risk of the impact on society of a specific service that uses artificial intelligence systems. Therefore, there are few obligations for AI solutions with a lower impact in terms of rights and freedoms on societies. More obligations as the impact increases, with an absolute prohibition on certain applications of AI whose impact on society is deemed unsustainable. The example remains that of artificial intelligence applications susceptible to being used in the realm of mass surveillance, intelligent biometric recognition to name one.

****This Regulation represents a milestone at the international level and has been hailed as a great success...***

The AI Act has been approved by the European Parliament with a very large majority, one that is rarely seen. We are the first to have such regulation: this is the message that has bounced back from Strasbourg. There is much pride and satisfaction, therefore, from European decision-makers, and I would say it is entirely justified, given the immense regulatory effort. We are indeed the first in the world to enact a systematic text on artificial intelligence. But we are not the first regarding the technology.

Artificial intelligence has been with us for several years; it has entered our homes, our cars, our offices, and is significantly present in our smartphones, with which we coexist for most of the day. It has already significantly shaped markets, societies, and democracies, and here lies the real challenge: now is the time for celebrations for a milestone reached, but starting tomorrow, this milestone must actually become the starting line.

****In what sense?***

In the sense that the road is still long. Even the road of the Regulation is not yet concluded, as a series of more formal than substantial steps are still expected – legal linguists, the Council, and publication in the Official Journal – and then it will come into effect, but progressively; it will take another two years for it to be directly applicable in all EU countries. And we know perfectly well that from here to then, the world of artificial intelligence will show us even more of itself, with developments that we cannot even imagine. For example, let us remember how the draft Regulation entered the final rush without even a provision regarding generative artificial intelligence models, and only the explosion of the ChatGPT OpenAI case led to those provisions being included. There will be other similar episodes in the next two years.

****How should we work then?***

The real challenge now is to implement these provisions and move, I am not saying from theory to

practice, because it is certainly a Regulation that has the merit of being inspired to some extent by pragmatism, but at least from the written rule to the living rule. Here, a significant effort is needed from the various Member States. The European institutions have done their part; there is already an office for artificial intelligence, among other things led by an Italian woman like Lucilla Sioli, but now we need to do the same at the national level. Let's say that the game now shifts to the various countries, and at the national level, we should perhaps avoid getting lost in new regulatory exercises, rewriting provisions and forecasts already contained within the regulation that is directly applicable in all EU countries, and rather focus on identifying the agencies or authority that will ultimately implement these norms.

The risk is indeed of having timelines that are too long in relation to an increasingly fast-paced technological context...

Yes, and for this reason, a dialogue should be opened as soon as possible with all stakeholders, to understand if and to what extent it is possible to implement.

****Anticipated on a voluntary basis to the rules of the AI Act, without waiting two years. Then we need to understand what the national needs or even emergencies are in both directions: on one side, the promotion of the use, production, and national development of artificial intelligence, and on the other side, the protection of individuals. In short, we should be concerned with maximizing opportunities and minimizing risks. Stefano Rodotà reminded us that technology itself is a form of regulation, so from this perspective, in a potential race for speed, it is a rival to be wary of and to keep in mind. Now, let us forget that we have crossed the finish line and rather feel ourselves at the starting line, at the blocks, and let us truly start running to implement these rules.****

****In summary, to conclude, the AI Act is an important step, but it is not enough.****

****In my opinion, we should consider these rules as a methodological box within which we must be skilled at inserting a series of verticals, because in the end, artificial intelligence is an absolutely horizontal technology that will impact so many areas of our lives that it is impossible to think that its rules are all contained within the AI ACT. The bet, therefore, is to take the Regulation, consider it a working method, and insert the vertical disciplines: consumer protection, digitalization of public administration, health, healthcare, justice.****